

SANDERS v LUHRASSEBI, et al

25CV48201

PLAINTIFF'S MOTION FOR PROTECTIVE ORDER

Lynne Sanders ("Plaintiff") filed her Complaint arising out of allegations of predatory lending against Loancutters, Inc. dba Evoque Lending ("Evoque"), Mehdi Luhrassebi ("Luhrassebi"), Frank Ortiz ("Ortiz"), Lee Kulick ("Kulick"), and Pasquale Chiechi and Antonia Chichi as Co-Trustees of the Chiechi Family Trust dated February 4, 1993 ("Lenders.")

Now before the Court is Plaintiff's motion for protective order.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative

ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, the Court **DENIES** Plaintiff's Motion for Protective Motion, With Leave to Amend.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order complying with Rule 3.1312 in conformity with this Ruling.

FARIDI v TDS TRUSTEE SERVICES

25CV48053

DEFENDANT'S DEMURRER/MOTION TO STRIKE AS TO FIRST AMENDED COMPLAINT

Plaintiff Tariq Jamil Faridi ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendant Steve Carlson ("Carlson") and TDS Trustee Services, Inc. ("TDS.")

Now before the Court is a demurrer filed by TDS. TDS demurs to all six causes of action.

I. BACKGROUND

Plaintiff filed his complaint against Carlson on May 19, 2025. Plaintiff filed a first amended complaint against Carlson on July 3, 2025. Plaintiff is an individual residing at 486 Rich Gulch Rd, Mokelumne Hill, CA 95249 ("Property") and asserts that he is the lawful occupant and homestead of the Property. Non-party Steve Carison is an individual who claims adverse possession based on a contested Trustee's Deed. TDS is the foreclosure trustee who recorded the Trustee's Deed Upon Sale.

On July 11, 2025, upon Plaintiff's motion, all causes of action against Carlson were dismissed *with* prejudice. At the case management conference on September 24, 2025, Plaintiff was directed to file proof of service of the FAC. Carlson is not currently a party to this action. There is no evidence that Plaintiff ever served the FAC and summons on Carlson.

On November 21, 2025, Plaintiff filed a self-titled Motion to Reinstate Steve Carlson as Defendant. The Court denied the motion, without prejudice, due to Plaintiff's failure to comply with Local Rule 3.3.7. On May 22, 2026, the Court denied Plaintiff's motion for leave to file a second amended complaint, also due to Plaintiff's failure to comply with Local Rule 3.3.7.

Although not necessary for the Court's rulings as to the demurrer to each cause of action, Defendant TDS' Request for Judicial Notice is GRANTED.